



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing ten judgments on Tuesday 25 February 2020 and 22 judgments and / or decisions on Thursday 27 February 2020.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 25 February 2020

[Sigríður Elín Sigfúsdóttir v. Iceland \(application no. 41382/17\)](#)

The applicant, Sigríður Elín Sigfúsdóttir, is an Icelandic national who was born in 1955 and lives in Selfoss (Iceland). She was a manager for Landsbanki Islands hf, which collapsed in 2008 during the global banking crisis.

The case concerns the applicant's allegation that judges deciding on a case against her for financial offences following the Icelandic bank crash were biased because they owned shares in her bank.

She was convicted in 2015 by the Supreme Court of fraud by abuse of position and of aiding and abetting in market manipulation. It found in particular that she had caused Landsbanki shareholders financial loss because of her imprudent decisions on granting loans just before the collapse.

After revelations in the media in 2016 that certain Justices of the Supreme Court had owned shares in Icelandic banks before the crash, the applicant applied to have the proceedings against her reopened. She cited in particular three judges who had sat on the panel in her case, E.T., M.S. and V.M.M., alleging that their financial interests had made the proceedings against her be in violation of the Icelandic Constitution and the European Convention on Human Rights.

The applicant's request was accepted in 2019 and the proceedings for the reopening of her case are currently still ongoing.

Relying on Article 6 § 1 (right to a fair trial / access to court) of the European Convention on Human Rights, the applicant argues that Justices E.T., M.S. and V.M.M. could not have been impartial in the proceedings against her because they had suffered significant financial losses as a result of her activities. She also alleges that they failed to disclose their financial interests, as required by Icelandic law. Lastly, she alleges under Article 6 § 2 (presumption of innocence) that the Supreme Court, which overturned her acquittal at first instance, had a preconceived idea of her guilt.

[Abukauskai v. Lithuania \(no. 72065/17\)](#)

The applicants, Feliksas Augėnėius Abukauskas and Vladislava Abukauskienė, husband and wife, and their son, Gintaras Abukauskas, are Lithuanian nationals who were born in 1952, 1948, and 1978 respectively. The couple live in the Panevėžys Region, while their son lives in Panevėžys (Lithuania).

The case concerns their complaint about the investigation into an arson attack on their house.

Mr Abukauskas and Mrs Abukauskienė's house caught fire in the early hours of 30 May 2013. The firefighters established that the blaze had been started intentionally and a pre-trial investigation was immediately opened.

It lasted seven months before being suspended because it had not been possible to identify the arsonist. During those seven months the authorities carried out numerous investigative measures,

which had included carrying out a forensic examination of the house's debris, arresting a suspect, the applicants' neighbour with whom there was an ongoing conflict, searching his house and taking hand swabs from him as well as the clothes and shoes that he had worn on the day of the fire.

In March 2014 the applicants lodged a complaint with the prosecutor, alleging that the police had lost important evidence by not following the relevant regulations when following their lines of inquiry. The ensuing disciplinary inquiry found that the police had made mistakes, but that this had not necessarily affected the outcome of the investigation.

In 2016 and 2017 the courts dismissed a civil claim by the applicants against the State, finding that one of the main reasons why it had not been possible to identify the arsonist was because of a lack of any traces of flammable liquids on the debris taken from the house. Therefore, even if flammable liquids had been found on the applicants' neighbour, it would not in any case have been possible to link him to the fire. That meant that any shortcomings in the investigative measures had not been significant or decisive.

Relying on Article 1 of Protocol No. 1 (protection of property) to the European Convention, the applicants complain that the criminal investigation into the arson attack on their house, marred by police mistakes and procedural shortcomings, was ineffective.

[A.S.N. and Others v. the Netherlands \(nos. 68377/17 and 530/18\)](#)

The applicants in application no. 68377/17 are Mr A.S.N. and Mrs T.K.M., while the applicants in application no. 530/18 are Mr S.S.G., Mrs M.K.G., and Mrs D.K.G. The applicants are Afghan nationals who were born in 1977, 1982, 1974, 1982, and 1947 respectively and live in the Netherlands in Capelle aan den IJssel (A.S.N. and T.K.M.) and Emmen (S.S.G., M.K.G. and D.K.G.).

All the applicants are Sikhs who used to live in Afghanistan. The case concerns their complaint that they would face ill-treatment if removed back to that country.

A.S.N. and T.K.M. are a husband and wife who have also lodged their application on behalf of their two children, who are minors.

The family applied for asylum in the Netherlands in October 2015, telling the Dutch authorities that they had left Afghanistan after T.K.M.'s sister had been kidnapped while on the way to the *Gurdwara* (Sikh temple) and that her brother had received a ransom demand signed by the Taliban and had then himself disappeared. The applicants had started receiving letters demanding to know where the brother was and threatening kidnap and murder if they did not reveal his location.

The applicants came into contact with a man who arranged for them to travel abroad: before leaving T.K.M. and the children had stayed in their house all the time, which they had eventually sold to pay for their journey. They also alleged that they had been the target of general abuse and threats in Afghanistan because of their religion.

The Dutch authorities rejected both an initial and a renewed asylum application by the applicants, decisions that were upheld in court. The decisions found in particular that the applicants' account of events lacked credibility, that they had failed to show that they had left Afghanistan only recently and that they had not made a plausible case for believing that they feared persecution.

The applicants in application no. 530/18 are a father, mother, two children and the children's maternal grandmother. They applied for asylum in June 2014, telling the authorities that about eight months before leaving Kabul three people had forced their way into their home and that the grandmother's husband had died as a result of being beaten. They had also suffered constant harassment because they were Sikhs. They had decided to leave Afghanistan and had made arrangements with an intermediary.

The Dutch authorities rejected their initial and a renewed asylum application, expressing doubts in particular about whether they had only recently left Afghanistan, which meant in turn that no

credence could be given to their account of events. The courts ultimately upheld the authorities' decisions.

The applicants in both applications complain that their removal to Afghanistan would expose them to a real risk of treatment that would violate Article 3 (prohibition of torture and of inhuman or degrading treatment) or Article 2 (right to life) or both taken together.

[Paixão Moreira Sá Fernandes v. Portugal \(no. 78108/14\)](#)

The applicant, Ricardo Paixão Moreira Sá Fernandes, is a Portuguese national who was born in 1954 and lives in Lisbon.

The case concerns the conviction of the applicant, a lawyer, for having recorded a conversation with a businessman without his knowledge.

In January 2006 the applicant was contacted by a businessman, the manager of a property investment firm, in order to discuss an issue of common interest. The two men met a few days later and, during the conversation, the businessman offered the applicant a sum of money to persuade his brother, a member of Lisbon City Council, to withdraw his opposition to a contract concluded by the businessman with the City Council.

The applicant secretly recorded the conversation and transferred the recording to the police, with whom he subsequently collaborated as an undercover agent in the criminal investigation opened in respect of the businessman. The two men later met again on several occasions to discuss the arrangements for the agreement to end his brother's opposition to the contested contract, and the meetings were then stopped.

In February 2006 the businessman was placed under investigation for bribery. In 2012 the Supreme Court sentenced him to five months' imprisonment, suspended in return for payment of 200,000 euros (EUR) to the State Treasury.

In the meantime, the businessman lodged a complaint against the applicant for recording their first meeting unlawfully. In 2011 the Lisbon prosecutor's office opened an investigation and subsequently charged the applicant with making an unlawful recording. The applicant was convicted at second instance and ordered to pay a fine of EUR 4,800 for making an unlawful recording.

Relying on Article 6 § 1 (right to a fair trial), the applicant alleges that he did not have a fair hearing. He complains, in particular, that he was convicted at second instance although the Lisbon Court of Appeal had not heard him or the witnesses, in spite of the fact that he had been acquitted at first instance. He also alleges a lack of impartiality on the part of the court of appeal, and complains about his conviction for making an unlawful recording although, in his submission, the recording was a contributing factor in the businessman's conviction for corruption.

Relying on Article 8 (right to respect for private and family life), he submits that the court of appeal did not strike a fair balance between his right to respect for his reputation and the businessman's right to speak out.

[Y.I. v. Russia \(no. 68868/14\)](#)

The applicant, Y.I., is a Russian national who was born in 1980 and lives in Moscow. She has three children by two fathers, who were born in 1999, 2011 and 2012.

The case concerns the applicant's complaint about being deprived of her parental authority in respect of her three children because she was a drug addict.

On 8 October 2013 the applicant was arrested at her home on suspicion of drug trafficking. She was taken to the police station and interviewed, admitting to having started taking drugs in 2004. She had stopped in 2010 before giving birth to her two youngest children, but had relapsed and been taking heroin for the past month.

The children were immediately taken into public care. Her eldest child was subsequently taken to stay with his father. The two youngest children, whose father had been arrested at the same time as the applicant, were initially placed in a children's home and were then transferred to a foster family where they have remained ever since.

In April 2014 the applicant was found guilty of drug trafficking and sentenced to six years' imprisonment.

In the meantime, in January 2014, the domestic courts had deprived her of parental authority, deciding that it would be dangerous to leave the children in her care. The courts referred in particular to her drug addiction and the fact that she was unemployed. In her defence, the applicant argued, providing evidence, that she had started rehabilitation treatment and found a job. The first-instance court rejected this argument as irrelevant, while the appeal court found that it had been received after the first-instance judgment.

In cassation proceedings the Presidium of the Moscow City Court upheld the lower courts' judgments, endorsing their reasoning.

Relying on Article 8 (right to respect for private and family life), the applicant complains that the domestic courts automatically applied a law under which drug addiction is a ground for removal of parental authority, without considering a less drastic alternative. She also points out that the law depriving her of parental authority entailed her losing all contact rights with her children, which she argues is disproportionate.

Thursday 27 February 2020

[Khadija Ismayilova v. Azerbaijan \(no. 2\) \(no. 30778/15\)](#)

The applicant, Khadija Rovshan gizi Ismayilova, is an Azerbaijani national who was born in 1976 and lives in Baku.

The case concerns her complaint that she was arrested and detained without a reasonable suspicion of an offence and her allegations that those acts were linked to her work as a journalist.

Ms Ismayilova worked for the Baku bureau of Azadliq Radio, the Azerbaijani service of the US-funded radio station Radio Free Europe/Radio Liberty, as an employee, manager or freelancer.

Notably between 2010 and 2012 she wrote investigative articles which examined the alleged involvement of President Aliyev's family in illegal business activities. Intimate videos of her were unlawfully recorded by a hidden camera and subsequently put on the Internet (events which were the subject of *Khadija Ismayilova v. Azerbaijan*).

In 2013 and 2014 she and other civil society activists were criticised in State media, including an article by the then head of the Presidential Administration in December 2014, which described the applicant as someone who "demonstrates a hostile attitude towards well-known Azerbaijani public figures and spreads insulting lies".

In December 2014 Ms Ismayilova was charged with the criminal offence of incitement to suicide after a former colleague alleged that he had tried to kill himself because she had pressured and humiliated him after he had ended a relationship with her. Sabail District Court remanded the applicant in custody. The same court and the Baku Court of Appeal rejected her requests to be released or for a non-custodial measure. The detention order was extended several times.

The former colleague who had made the original allegation subsequently stated on Facebook that he would withdraw his complaint, adding later that the authorities had coerced him into making it.

In February 2015 the authorities brought further charges against Ms Ismayilova, accusing her of high-level embezzlement, illegal entrepreneurship, large-scale tax evasion and aggravated abuse of power, mainly concerning her activities when she was head of the Baku bureau of Azadliq Radio.

In September 2015 she was found guilty of the financial charges and sentenced to seven and a half years' imprisonment. The charge of incitement to suicide was dropped for lack of evidence. The Supreme Court in May 2016 quashed her conviction for high-level embezzlement and aggravated abuse of power, reducing her sentence to three years' imprisonment suspended on probation and releasing her from detention.

In December 2014, after her arrest, the Prosecutor General's Office released a statement titled "Illegal acts of Khadija Ismayilova have been unmasked", relating her former colleague's allegations.

Relying on Article 5 §§ 1 (c) and 3 (right to liberty and security / entitlement to trial within a reasonable time or to release pending trial), Ms Ismayilova complains that she was arrested and detained without there being a reasonable suspicion that she had committed a criminal offence.

Under Article 5 and Article 6 (right to a fair trial), she argues that she did not have enough time or facilities to challenge the lawfulness of her detention; that the courts were not impartial or independent; and that the authorities failed to carry out an effective review of her detention and provide reasons for it. She also alleges that the court decisions extending her detention and the statement by the Prosecutor General's Office breached Article 6 § 2 (presumption of innocence).

She also complains about the authorities' actions under Article 18 (limitation on use of restrictions on rights) taken in conjunction with Article 5, and under Article 10 (freedom of expression)

[Lobzhanidze and Peradze v. Georgia \(nos. 21447/11 and 35839/11\)](#)

The applicants, Zurab Lobzhanidze and Pati Peradze, are Georgian nationals who were born in 1964 and 1950 respectively and live in Horgen (Switzerland).

The case concerns three sets of interconnected proceedings against Mr Lobzhanidze, one of which also concerned his mother-in-law, Ms Peradze.

The first set of proceedings against Mr Lobzhanidze, chairman of the board of directors of two gold and copper mining companies, was for abuse of power and commenced in 2004. He was convicted as charged by a first-instance court in 2017 and sentenced to two years' imprisonment, commuted under an amnesty.

In the second set of proceedings both applicants were convicted of forgery in July 2010 and sentenced to seven years' imprisonment each. In particular, the courts found that Mr Lobzhanidze had fictitiously sold a house he owned by the seaside in Kvartati in order to avoid its confiscation. He had apparently sold it through his mother-in-law to a third party, using a fictitious document drawn up in 2004 certifying a title to the property. The courts relied on various witness statements, by the applicants' relatives and by a couple who had looked after the house between 2000 and 2009, to find that it had always been owned by the applicants and had therefore never actually been sold.

The applicants appealed, arguing in particular that the sale of the house had been genuine but annulled because the new owner had not been able to access the house which had been sealed, and that the Minister of Internal Affairs had moved into it while the proceedings against them had still been pending. The Minister was subsequently found guilty of abuse of his official position, as the house had not been transferred to the State and he had had no right to make use of it.

The first-instance judgment against the applicants was upheld in full in November 2010, and the Supreme Court dismissed an appeal on points of law as inadmissible in 2011.

In the meantime, a third set of proceedings was brought against Mr Lobzhanidze for telephoning the judge hearing the case brought against him and his mother-in-law as part of the second set of

proceedings in an alleged attempt to influence the judge to find in their favour. Mr Lobzhanidze was assigned a legal-aid lawyer in those proceedings. He was convicted in absentia in September 2010 of grossly interfering with judicial activities and sentenced to one year's imprisonment. His application for leave to appeal outside the one month time-limit on the grounds that he had been unaware of the assignment of the legal-aid lawyer and the adoption of the first-instance court's judgment was subsequently rejected.

Mr Lobzhanidze's sentence from his second conviction was reduced and he was amnestied in respect of the third set of proceedings. Ms Peradze was also amnestied in respect of her conviction.

Relying on Article 6 § 1 (right to a fair trial) and Article 7 (no punishment without law), the applicants complain that the judgments in the second set of proceeding were not duly reasoned and that their sale contract did not amount to forgery under the domestic law.

Mr Lobzhanidze also complains that high-level government officials made prejudicial statements about him during the first set of criminal proceedings, in breach of Article 6 § 2 (presumption of innocence).

Lastly, he complains that the investigator in the third set of proceedings appointed a legal-aid lawyer, without giving him the opportunity to choose his own lawyer and that this had made it impossible for him to have his conviction reviewed on the merits, in breach of Article 6 §§ 1 and 3 (c) (right of access to court / right to legal assistance of own choosing / right to obtain attendance and examination of witnesses) and Article 2 § 1 of Protocol No. 7 (right of appeal in criminal matters).

[Strezovski and Others v. North Macedonia \(nos. 14460/16, 14958/16, 14962/16, 14966/16, 27884/16, 16064/17, 20229/17, and 30206/17\)](#)

The applicants, Strezo Strezovski, Cane Nikolovski, Aco Spasovski, Josip Juvan, Zoran Kostovski, Trajanka Nakevska, Enver Iseni, and Sonja Nalbanti-Dimoska, are Macedonians/citizens of the Republic of North Macedonia who were born in 1953, 1958, 1955, 1942, 1952, 1953, 1958, and 1969 respectively and live in Skopje.

The case concerns their complaint that they were obliged under State regulations to pay a standing charge for heating in their flats to private suppliers, even though they had been disconnected from the heating network.

The applicants are all owners of flats in residential buildings which are connected to a district heating network operated by private heat suppliers. Their flats had been disconnected from the system, either at their request or at that of former owners, before 2012 when regulations entered into force obliging disconnected users to pay private heat suppliers an annual standing charge.

In 2013 the Constitutional Court found the relevant provision of the regulation compatible with the Constitution. It considered that the standing charge was the price disconnected users should pay for heat received indirectly from other units in the buildings which were heated by the district system.

The domestic courts subsequently confirmed that approach when dismissing the applicants' civil claims opposing payment of the standing charge. The courts found in particular that the applicants, as indirect consumers, were obliged to pay the charge, irrespective of their individual circumstances.

In 2018 the Supreme Court limited the scope of application of such an approach by excluding a certain category of flats if certain conditions were met.

Relying on Article 1 of Protocol No. 1 (protection of property), the applicants allege that being obliged to pay the standing charge breached their property rights.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tuesday 25 February 2020

Name	Main application number
Dubrovina and Others v. Russia	31333/07
Gushchin and Gaskarov v. Russia	22581/15
Komolov v. Russia	32811/17
Kuzhil v. Russia	32702/13
Yartseva v. Russia	19273/08

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Name	Main application number
Abushov v. Azerbaijan	76251/11
Stoykov v. Bulgaria	32723/12
Ćaćić v. Croatia	46657/15
Cancy v. France	35827/17
Traggas and Excom A.E. v. Greece	8466/16
Čangov v. North Macedonia	17828/15
Arendarczuk v. Poland	39415/15
Bartosiewicz v. Poland	46160/12
Guja v. Poland	62242/14
Kosowicz v. Poland	61679/10
Lekszycki v. Poland	14900/15
Pastukhov v. Poland	34508/17
Tracz-Smoczyńska v. Poland	20587/13
Pavlova v. Russia	25835/10
Obinna Ibe v. Sweden	50586/18
Çiçek and Others v. Turkey	44837/07
İhsan Doğramacı Bilkent Üniversitesi v. Turkey	40355/14
C.C. v. the United Kingdom	77481/12
J.J. v. the United Kingdom	31127/11

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.